The examination is being carried out on the **following application documents**

Description, Pages

1-32 as originally filed

Claims, Numbers

1-18 as originally filed

Drawings, Sheets

1/26-26/26 as originally filed

Prior art

1 Reference is made to the following document; the numbering will be adhered to in the rest of the procedure.

D1 WO 2021/150868 A1 (ALL TAG CORP [US]) 29 July 2021 (2021-07-29)

Art. 82 EPC

2 The application lacks unity (Article 82 EPC).

The following groups of potential inventions are not so linked as to form a single general inventive concept:

– Group I: claims 1, 2;
– Group II: claims 3-6, 16-18;
– Group III: claim 7;
– Group IV: claims 8-15.

The reasons are as follows:

2.1 The common matter linking these groups (or subgroups thereof) of potential inventions is indicated as highlighted in bold for each of the independent claims in the points 2.1.1, 2.1.2, 2.1.3, 2.1.4, 2.1.5, 2.1.6 and 2.1.7 below.

The common matter highlighted in bold but not underlined is already known from D1: please refer to the points 2.1.1, 2.1.2, 2.1.3, 2.1.4, 2.1.5, 2.1.6 and 2.1.7 below (the references in parenthesis referring to this document). The common matter highlighted in bold and underlined is regarded as obvious in the light of the teaching of D1 for the reasons explained below.

2.1.1 Claim 1

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*, claim 22, figures 1-4) **comprising a rigid or semi-rigid** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **casing that substantially corresponds to the shape of a product and adapted to cover at least a portion of one side of the product but not fully enclosing the product** (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ..."*, § [00032], claim 1); **the casing having a top wall, a bottom wall, a first side wall and a second side wall forming an open frame** (§ [00032], *"Frame 20 includes a top wall 22, bottom wall 24 and side walls 26, 28."*, figures 1, 2), ~~wherein the first side wall includes at least one clip for attaching the casing to the product and adapted to facilitate the wrapping of a flexible adhesive support and the second side wall includes at least one clip for attaching the casing to the product and adapted to facilitate the wrapping of a flexible adhesive support~~; **a security element or a non-EAS label** (§ [00038]) ~~having a deterrent message~~ **attached to the casing and adapted to be inaccessible to a consumer when the Keeper is attached to the product** (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such*

that it cannot be removed and preferably cannot be seen.", figure 2); **and a means for securing the Keeper to the product** (§ [00036], *"The flexible adhesive support 14 comprises a clear tape 40 with a strong glue and a peel-off paper backing 42. The clear adhesive tape 40 is meant to wrap around the package of a product and the Keeper 10 to hold all together by the strong glue of tape 40.",* figures 1, 2).

2.1.2 Claim 3

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **comprising a rigid or semi-rigid** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid, flexible material) **plastic member** (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ...",* § [00032], claim 1) ~~less than 2.5 mm in thickness~~ **having a first surface and a second surface and adapted to attach to a product** (figures 9A-9C); **a double-sided glue** (§ [00028], [00044], *"double-sided glue 140",* figures 9A-9C) **wherein a first side of the glue is attached to the second surface of the plastic member and the second side of the glue is adapted to be adhered to the product** (§ [00028], [00044], *"The glue 140 is located on the perimeter of the improved Keeper 100 in order to attached it onto a product 80 protecting only one side of the product 80.",* figures 9B, 9C); **a peel-off paper adhered to the second side of the glue prior to the plastic member being adhered to the product** (§ [00044], *"peel-off paper 142",* figure 9B); **a security element or a non-EAS label** (§ [00038]) ~~attached to the second surface of the plastic member~~ **and**

inaccessible to a consumer when the Keeper is attached to the product (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such that it cannot be removed and preferably cannot be seen."*, figure 2); ~~and having one or more horizontal predetermined grooves in at least the first surface of the plastic member and adapted to break when force is applied in an attempt to remove the Keeper from the product~~.

2.1.3 Claim 7

A disposable security device keeper having no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **comprising a semi-rigid flexible** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid, flexible material) **plastic member** (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ..."*) **adapted to adhere to a product having a flat surface** (§ [00028], [00032], [00044], figure 9C: the product 80 has a flat surface and the rigid casing 12 of the keeper is attached to the flat surface) ~~or a rounded surface~~, **a double-sided glue wherein a first side of the glue is attached to the plastic member and the second side of the glue is adapted to be adhered to the product** (§ [00044], *"... a double-sided glue 140 with peel-off paper 142. The glue 140 is located on the perimeter of the improved Keeper 100 in order to attached it onto a product 80 protecting only one side of the product 80."*, figures 9B, 9C); **a peel-off paper adhered to the second side of the glue prior to the plastic member being adhered to the product** (§ [00044], *"peel-off paper 142"*, figure

9B); **a security element or a non-EAS label** (§ [00038]) **attached to the plastic member and inaccessible to a consumer when the Keeper is attached to the product** (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such that it cannot be removed and preferably cannot be seen."*, figure 2); **wherein the second side of the glue is a glue which is adapted to damage the product label if the Keeper is removed** (*obvious for the embodiment of figures 9A-9C in the light of § [00037]. More particularly, the embodiment of figures 9A-9C would not make any technical sense if the used glue permitted to remove the keeper from the product without damaging the latter. In fact, the skilled person readily realises that the concept of "permanent adhesive" mentioned is § [00037] applies to all the embodiments, including thus also the embodiment of figures 9A-9C*).

2.1.4 Claim 8

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **adapted to prevent a product packaging from being opened from at least two sides of the product packaging** (implicitly disclosed by figures 11A and 11B in conjunction with § [00046]. In fact standard cosmetic packages such as those depicted in figures 11A and 11B have a bottom and a top opening) **comprising**

- two sub-Keepers (§ [00046], *"... two Keepers 310 and 410 at the top and bottom of a Hard Good 180 ..."*, figures 11A, 11B) ~~attached to each other by separation means and adapted to be separated~~ **and attached to the product packaging to prevent the product packaging from being opened** (implicitly disclosed by figures 11A and 11B in conjunction with § [00046]);

- the two sub-Keepers each comprising a rigid or semi-rigid plastic member (even though D1 does not explicitly mentions the

expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **having a security element on at least one of the sub-Keepers** (implicitly disclosed by § [00046] and figures 11A and 11B in the light of the whole disclosure of D1) ~~and a double-sided glue and peel-off backing papers~~ **wherein a first sub-Keeper is attached to a first opening means of a product packaging to prevent the package from being opened and the second sub-Keeper is attached to a second opening means of a product packaging to prevent the package from being opened** (implicitly disclosed by figures 11A and 11B in conjunction with § [00046]. In fact standard cosmetic packages such as those depicted in figures 11A and 11B have a bottom and a top opening).

2.1.5 Claim 10

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **for attachment to a product container having a body and a lid for access to the product in the body** (§ [00046], figure 11A and 11B: the arrangement shown in figures 11A and 11B of D1 is suitable for being attached to a product container having a body and a lid for access to the product in the body) **comprising a first semi-rigid plastic member** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **having a first surface and a second surface** (§ [00046], figures 11A and 11B: each of the keepers 310 and 410 have at least a first surface and a second surface), ~~said second surface having a double-sided glue and a peel-off backing and adapted to be adhered to the body of the container when the peel-off backing is removed~~, at least one security element attached to said second surface (the

security element is implicitly attached to one of the keepers 310 and 410) **and a second semi-rigid plastic member** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **removably attached to the first plastic member and adapted to be attached to said lid of said container to prevent the opening of said lid** (§ [00046], figures 11A and 11B: this is the case for example when the top part of the cosmetic package or container has a lid).

2.1.6 Claim 14

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **for attachment to a metal container** (nothing prevents the embodiment of figures 11A and 11B to be attached to a metal container. Thus, the keeper of the embodiment of D1 disclosed in § [00046] and figures 11A and 11B is suitable for attachment to a metal container) **comprising a thin semi-rigid plastic member having a first surface and a second surface and adapted to adhere to said metal container by said second surface** (§ [00046], figures 11A, 11B: both the keepers 310 and 410 anticipate these features. It is observed that the adjective "thin" provides only a very broad limitation: also the keepers 310 and 410 are "thin". Moreover, even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material), ~~said second surface includes a double-sided glue attached to said second surface of said plastic member and one side of said glue adapted to adhere to said product container, at least one security element~~

~~attached to said second surface by said glue, wherein said plastic member includes a dome shaped surface having a distance of about 2 mm to 10 mm to separate said at least one security element from said metal container~~.

2.1.7 Claim 16

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **comprising a rigid or semi-rigid** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **plastic member** (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ..."*, § [00032], claim 1) **having a first surface and a second surface and adapted to attach to a product** (figures 9A-9C); **a double-sided glue** (§ [00028], [00044], *"double-sided glue 140"*, figures 9A-9C) **wherein a first side of the glue is attached to the second surface of the plastic member and the second side of the glue is adapted to be adhered to the product** (§ [00028], [00044], *"The glue 140 is located on the perimeter of the improved Keeper 100 in order to attached it onto a product 80 protecting only one side of the product 80."*, figures 9B, 9C); **a peel-off paper adhered to the second side of the glue prior to the plastic member being adhered to the product** (§ [00044], *"peel-off paper 142"*, figure 9B); **a security element or a non-EAS label** (§ [00038]) ~~attached to the second surface of the plastic member~~ **and inaccessible to a consumer when the Keeper is attached to the product** (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such that it cannot be removed and preferably cannot be seen."*, figure 2); **and**

having a peg-hole adapted to align with a peg-hole of a product (§ [00043], [00044], figure 9C), ~~wherein the peg-hole of the Keeper includes guide members to align the peg-hole of the Keeper with the peg-hole of the product~~.

2.2 The common matter therefore cannot constitute a single general inventive concept linking the independent claims.

2.3 Potential invention I comprises the additional features of claim 1, according to which the first side wall includes at least one clip for attaching the casing to the product and adapted to facilitate the wrapping of a flexible adhesive support and the second side wall includes at least one clip for attaching the casing to the product and adapted to facilitate the wrapping of a flexible adhesive support.

2.4 Potential invention II comprises the additional features of claim 3, according to which the keeper has one or more horizontal predetermined grooves in at least the first surface of the plastic member and adapted to break when force is applied in an attempt to remove the keeper from the product.

2.4.1 It is observed that, although independent claim 16 defines substantially a different invention than independent claim 3, both these independent claims share the feature, according to which the security element is attached to the second surface of the plastic member. As this feature cannot be regarded to be obvious in the light of the teaching of D1, the independent claims 3 and 16 and the corresponding dependent claims have been grouped in a single invention (invention II).

2.5 Potential invention III comprises the additional features of claim 7, according to which the semi-rigid flexible plastic member is adapted to adhere to a product having a rounded surface.

2.6 Potential invention IV comprises the additional features of claim 8, according to which the two sub-Keepers are attached to each other by separation means and adapted to be separated.

2.6.1 It is observed that, although independent claim 10 with its dependent claims defines substantially a different invention than independent claim 8, both these independent claims share the feature, according to which the sub-keepers and the second surface of the first semi-rigid plastic member have a double-sided glue and a peel-off backing and are adapted to be adhered to the body of the product/container when the peel-off backing is removed. As this feature cannot be regarded to be obvious in the light of the teaching of D1 (and in particular of

the embodiment of figures 11A and 11B), the independent claims 8 and 10 and the corresponding dependent claims have been grouped in a single invention (invention IV). The same applies, for similar reasons, to the independent claim 14, because the features of claim 14 disclosed by D1 are those of the embodiment of figures 11A and 11B. Therefore also the independent claim 14 and the corresponding dependent claims have been grouped together with invention IV.

2.7 It follows that the features of potential inventions I-IV which make a technical contribution over the common matter are different.

2.8 The technical effect of the additional features of potential invention I is that the the wrapping of the flexible adhesive support becomes easier. The problem solved by these technical features can be regarded as: how to improve the securing of the product to the keeper.

2.9 The technical effect of the additional features of potential invention II is that the keeper breaks in case an attempt is made to remove the keeper from the product. The problem solved by these technical features can be regarded as: how to render the keeper more tamper safe.

2.10 The technical effect of the additional features of potential invention III is that the keeper can be better attached to round objects, such as bottles. The problem solved by these technical features can be regarded as: how to facilitate the use of the keeper with round objects, such as bottles.

2.11 The technical effect of the additional features of potential invention IV is that the keeper can be better stored and/or transported before being attached to a product. The problem solved by these technical features can be regarded as: how to improve the logistic of the keepers.

2.12 As the technical problems are different, the additional technical features cannot be considered to be corresponding special technical features.

2.13 As the claims do not comprise the same or corresponding special technical features, they lack the technical relationship between their subject-matter required by Rule 44 EPC and the claims are not so linked as to form a single general inventive concept.

The application therefore does not fulfil the requirement for unity of invention within the meaning of Article 82 EPC.

2.14 The application can only be prosecuted on the basis of an invention that has been searched by the EPO. Upon entry into the examination phase, the applicant should limit the application to only one searched invention, or unitary group of inventions, and excise those parts of the application relating to the other inventions (see Guidelines C-III, 3.1.1 and 3.1.2; H-II, 7.1, 7.3 and 7.4.2).

Art. 84 EPC

3 The feature of claim 1, according to which the clip is adapted to facilitate the wrapping of a flexible adhesive support, is unclear (Article 84 EPC) because the matter for which protection is sought is not defined. The claim attempts to define the subject-matter in terms of the result to be achieved (namely facilitating the wrapping). Such a definition is only allowable under the conditions elaborated in the Guidelines F-IV, 4.10. In this instance, however, such a formulation is not allowable because it appears possible to define the subject-matter in more concrete terms, viz. in terms of how the effect is to be achieved. This is explained in paragraphs [00018], [00041] and [00070] and figures 18A-18C of the description, according to which **the clips are also guide pins**. The feature in bold must be inserted in claim 1, so as to meet the requirements of Art. 84 EPC. Concerning claim 1, it is further unclear what the claimed means for securing the keeper to the product are, in particular because these means would appear to be already claimed in a more precise way (clips, flexible adhesive support) in the preceding parts of the claim. **The applicant is requested to clarify also this aspect of claim 1.**

Art. 52(1), 54 and 56 EPC

4 If clarified as indicated in point 3 above, claim 1 would appear to be new and to involve an inventive step over the available prior art.

Procedure

5 Upon amending with a view to overcoming the above objections, the opportunity should be taken to attend to the following outstanding matter:

5.1 **Any argument supporting inventive step should be formulated using the problem/solution approach (see GL, Part G, Chapter VII, §§ 5. 5.1, 5.3, 5.3)**.

5.2 **Amendments may thus not restrict the claims to an unsearched invention (see GL, Part H, Chapter II, § 7.2)**.

5.3 Any amended independent claim should be filed in the two-part form (Rule 43(1) EPC).

5.4 Document D1, which appears to represent the most relevant prior art, should be acknowledged in the description (Rule 42(1)(b) EPC).

5.5 The applicant should adapt the description to the claims on file and delete or amend any statements or expressions which throw doubt on the scope of protection (GL F-IV, 4.3). **Failure to do so could lead to the refusal of the application under Article 97(2) EPC in combination with Article 84 EPC**. In this respect it is further observed that a possible reference to the decision T 1989/18 as a justification for refusing to adapt the description would not be successful, because the examining division applies the Guidelines according to which an adaption of the description is required, as explained above. Incidentally reference is further made to a more recent BoA decision T 1024/18, which explicitly counters T 1989/18. The applicant should amend the description as needed to fulfil the following requirements:

5.5.1 The technical field of the invention (Rule 42(1)(a), GL F-II.4.2) must correspond to the amended set of claims.

5.5.2 The summary of the invention (Rule 42(1)(c) and GL F-II.4.5) must correspond to the amended set of claims. If appropriate, statements such as “The invention is set out in the appended set of claims“ or “The invention is as defined in claim X“ can be applied instead of repeating the claims verbatim.

5.5.3 **All embodiments which are not covered by the claims anymore must be deleted, unless these embodiments can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. In such case, they must be prominently marked as not being part of the present invention** (T 1808/06):

5.5.3.1 For example, independent claim <X> has been amended by limiting it to the feature of <feature A> . Ways of carrying out the invention using features presented as alternatives to this feature must either be deleted or the fact that they are not encompassed by the claims must be prominently stated.

5.5.4 **Any combinations of features which do not fall under the scope of the amended independent claims must be prominently marked as not being part of the present invention**.

5.5.4.1 For example, amended claim <X> comprises features <A>, <B> and <C> and the description on page X refers only to B+C as an embodiment of the invention. It must be marked as not being part of the invention.

5.5.5 Statements such as “The following examples/aspects/embodiments X, Y, Z are not according to the invention and are present for illustration purposes only” may be used at the start of the description (or in the list of figures) when such a situation arises.

5.5.6 **All technical features of the independent claims shall not be presented as optional in the description. Terms such as “for example“, “may“, “can”, “exemplary“, “optionally“, “preferably“ and the like should be removed when preceding a feature of an independent claim**.

5.6 Claim-like clauses must be deleted prior to grant. The term “claim-like clauses“ means clauses present in the description which use claim language such as “according to the preceding clause“, “characterised in that“, … (GL F-IV, 4.4). These “claim-like clauses“ also include examples, embodiments or aspects presented as claim-like clauses. A simple conversion of these clauses into separate optional features will not be admitted, either.

5.7 In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based. The applicant is reminded that, in case the amendments are directed to a combination of claims/features not originally claimed, the basis should be provided on the basis of the original description. Possible intermediate generalisations must satisfy both the necessary conditions for valid intermediate generalisations (no essential and/or inextricably linked features can be removed from an embodiment) and the sufficient condition that they can be directly and unambiguously derived from the original disclosure taken as a whole (see GL, H-V, § 3.2.1).